

2013 WL 5778774 (N.Y.Sup.) (Trial Pleading)  
Supreme Court of New York.  
Bronx County

Hezekiah HUGHES, Plaintiff,

v.

THE CITY OF NEW YORK, **Thomas Keane** and Teresa Cota, Defendants.

No. 0306164-2013.  
October 15, 2013.

**Summons**

Sivin & Miller, LLP, [Edward Sivin](#), Attorneys for Plaintiff, 20 Vesey St., Suite 1400, New York, NY 10007, (212) 349-0300.

To the above named defendant(s) :

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiffs attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York October 10, 2013

**VERIFIED COMPLAINT**

Plaintiff, by his attorneys Sivin & Miller, LLP, complaining of defendants, alleges as follows, upon information and belief:

**THE DEFENDANTS**

1. That at all times herein mentioned, defendant The City of New York (hereinafter "the City") was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
2. That prior to the institution of this action and within ninety (90) days from the dates when the causes of action accrued herein, a notice of claim and intention to sue was duly served upon and filed with the defendants on behalf of plaintiff; that this action was not commenced until the expiration of thirty (30) days after such notice of claim and intention to sue was presented and defendants have neglected and/or refused to make adjustment or payment thereon, and this action is being commenced within one year and ninety days after the causes of action accrued herein.
3. That at all times herein mentioned, the City owned, operated, controlled, managed, and maintained the New York Police Department (hereinafter the "NYPD").
4. That at all times herein mentioned, defendant **Thomas Keane** (hereinafter "Keane") was and is a police sergeant employed by the NYPD.
5. That at all times herein mentioned, Keane was acting within the course and scope of his employment with the NYPD.

6. That at all times herein mentioned, Keane was acting under color of state law.
7. That at all times herein mentioned, defendant Teresa Cota (hereinafter “Cota”) was and is a police sergeant employed by the NYPD.
8. That at all times herein mentioned, Cota was acting within the course and scope of her employment with the NYPD.
9. That at all times herein mentioned, Cota was acting under color of state law.
10. That at all times herein mentioned, the City owned, operated, controlled, managed and maintained the New York City Department of Correction (hereinafter the “NYCDOC”).

### **THE FACTS**

11. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.
12. That on or about July 30, 2012, in the County of Bronx, City and State of New York, plaintiff was being held and imprisoned in a holding cell without his consent and against his will.
13. That plaintiff was being held and imprisoned in the aforesaid holding cell based on a false claim that there was an open warrant for his arrest that had issued from the Family Court of the State of New York, County of Bronx.
14. That the false claim that there was an open warrant for plaintiff's arrest was made by NYPD Sergeant **Thomas Keane** and NYPD Officer Teresa Cota.
15. That four days earlier, on July 26, 2012, Keane and Cota had forcibly stopped plaintiff without probable cause or reasonable suspicion that he had committed or was about to commit a crime.
16. That after forcibly stopping plaintiff, Keane and Cota arrested plaintiff and took plaintiff into custody, without probable cause to believe that plaintiff had committed any crime and ostensibly because there was an outstanding warrant for plaintiff's arrest from the Family Court of the State of New York, County of Bronx.
17. That following his arrest, and based on the claim that there was an outstanding warrant for plaintiff's arrest, a Criminal Court judge directed defendants to produce plaintiff before a judge of the Family Court of the State of New York, County of Bronx.
18. That on July 30, 2012, plaintiff was in a holding cell in the County of Bronx, City and State of New York, waiting and expecting to be produced before a Family Court judge.
19. That plaintiff remained in his cell on July 30, 2012 without ever being seen by a Family Court judge or any other judge.
20. That thereafter, from July 30, 2012 to August 2, 2012, The City of New York, by and through its agents, servants, and/or employees, including agents, servants and/or employees of the NYPD and the NYCDOC, and including Keane and Cota, continued wrongfully to hold and imprison plaintiff against his will and without justification, and without ever taking plaintiff before a Family Court judge.
21. That on or about August 2, 2012, plaintiff finally was released from custody, again without ever having been brought before or otherwise presented to a Family Court judge.

22. That as a result of his arrest and imprisonment, plaintiff was injured physically and psychologically, suffered anxiety, panic, humiliation, and embarrassment, endured and will continue to endure pain and suffering, loss of enjoyment of life, and economic loss, and was otherwise damaged.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS**

**(False Arrest Under NY State Law)**

23. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

24. That the actions of The City of New York, by and through its agents, servants and/or employees, including Keane and Cota, in forcibly detaining and arresting plaintiff on July 26, 2012, constitute a false arrest under New York state law.

**AS AND FOR A SECOND CAUSE OF ACTION AGAINST  
DEFENDANTS THOMAS KEANE and TERESA COTA**

**(42 U.S.C. § 1983 Arising From False Arrest)**

25. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

26. That the actions of Keane and Cota in forcibly detaining and arresting plaintiff on July 26, 2012 constitute an illegal seizure of plaintiff in violation of the proscription against illegal searches and seizures contained in the Fourth Amendment to the U.S. Constitution, and in violation of plaintiff's right to due process guaranteed under the Fourteenth Amendment to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to [42 U.S.C. § 1983](#).

**AS AND FOR A THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS**

**(False Imprisonment Under NY State Law)**

27. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

28. That the actions of The City of New York, by and through its agents, servants and/or employees, and including NYPD and NYCDOC employees, including Keane and Cota, in delaying bringing plaintiff before a Family Court judge and in forcibly detaining and imprisoning plaintiff from July 26, 2012 through August 2, 2012, were in violation of [Family Court Act § 155](#) and constitute a false imprisonment under New York state law.

**AS AND FOR A FOURTH CAUSE OF ACTION AGAINST  
DEFENDANTS THOMAS KEANE and TERESA COTA**

**(42 U.S.C. § 1983 Arising From False Imprisonment)**

29. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

30. That the actions of Keane and Cota in delaying bringing plaintiff before a Family Court judge and in forcibly detaining and imprisoning plaintiff from July 26, 2012 through August 2, 2012, were in violation of [Family Court Act § 155](#) and constitute an illegal seizure of plaintiff in violation of the proscription against illegal searches and seizures contained in the Fourth Amendment to the U.S. Constitution, and in violation of plaintiff's right to due process guaranteed under the Fourteenth Amendment to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to [42 U.S.C. § 1983](#).

**AS AND FOR A FIFTH CAUSE OF ACTION AGAINST ALL DEFENDANTS**

**(Negligence)**

31. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

32. That the aforesaid arrest, detention, and imprisonment of plaintiff was the result of the negligence of defendants, their agents, servants and/or employees, in the manner in which plaintiff's old warrant was vacated and the manner in which the vacatur of that warrant was documented; in failing to take proper and necessary steps to ascertain whether there actually existed and was in effect a valid and outstanding warrant for plaintiff's arrest; and in the record keeping procedure utilized with respect to old warrants; and in otherwise being careless in the manner in which they documented whether there was an open, outstanding warrant or other legal process by which they were authorized to forcibly detain plaintiff.

33. That all of the foregoing causes of action fall within one or more of the exceptions set forth in [CPLR § 1602](#) with respect to joint and several liability.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action for compensatory and punitive damages in amounts that exceed the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and attorney's fees pursuant to [42 U.S.C. § 1988](#), and plaintiff also demands the costs and disbursements of this action.

Dated: New York, New York October 10, 2013

Yours, etc. SIVIN & MILLER, LLP

By

Edward Sivin

Attorneys for plaintiff

20 Vesey St., Suite 1400

New York, NY 10007

(212) 349-0300

---

End of Document

© 2015 Thomson Reuters. No claim to original U.S. Government Works.